



A Bitter PIL

Responding to public interest litigations by concerned residents, Mumbai's courts right the wrongs of an errant state government, seeking accountability at every step

By Malini Bhupta

Thirty-five years ago, the municipal authorities in Mumbai acquired a piece of land in the heart of Mumbai's Colaba on the pretext of building a recreation area for children. Soon, the land was leased out illegally to a local eatery, Kailash Parbat. Residents fought the harassment of the illegal tenants for over three decades. All appeals to the local police officials and Brihanmumbai Municipal Corporation (BMC) fell on

deaf ears. Finally, the First Pasta Lane Residents' Association filed a Public Interest Litigation (PIL) against the state Government and BMC in the Bombay High Court, demanding that the encroachment should be removed and all commercial activity be suspended. After 120 hearings, the court ruled in favour of the residents.

At least 100 PILs are filed each year in the Bombay High Court against the state's inept measures. Be it questioning the police's bungling during 26/11, the quality of bullet-proof jackets or looking for solutions to decongest the

city of traffic and vehicular pollution, all these battles are being fought by lawyers and activists in court. The Government, for all practical purposes, is "absent" from the space of policy-making and governance—unless, of course, it has to do with cabbies and their "local" language skills.

Explains advocate V.P. Patil, who has filed a PIL against the state to act against errant bureaucrats and police officials during 26/11: "If the Government was working, citizens wouldn't be running to court. Even the Opposition in the Assembly and Parliament